

FIRST ENDORSEMENT

Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, February 28, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29510 against Police Officer John Eller, Tax Registry No. 965069. The case was conferenced on February 20, 2024, before Assistant Deputy Commissioner of Trials Anne E. Stone, who approved a Command Discipline Schedule A with the negotiated penalty of a forfeiture of Five (5) vacation days. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29510
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, ELLER	FIRST JOHN	M.I. W	COMMAND DET SQD. BX-040
SHIELD NO. 30780	TAX REGISTRY NO. 965069	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer John Eller, on or about July 13, 2022, at approximately 1920, while assigned to 040 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he said to § 87(2)(b), I don't give a fuck who Yonkers Kia is, without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer John Eller, on or about July 13, 2022, at approximately 1920, while assigned to 040 PCT and on duty, in the vicinity of § 87(2)(b), Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he threatened to issue § 87(2)(b) a summons for a traffic violation, without police necessity.	DISMISSED	

DC Brubaker 4/11/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caban 5/10/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, April 10, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 202329510 against Police Officer John Eller, Tax #965069, with the recommendation that the Charges and Specifications against Police Officer Eller be dismissed and that Police Officer Eller receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk


Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED


MAY 18 2024
EDWARD A. CABAN
POLICE COMMISSIONER